

Stereo.HCJDA 38.
JUDGMENT SHEET.
LAHORE HIGH COURT,
RAWALPINDI BENCH RAWALPINDI.
JUDICIAL DEPARTMENT

WRIT PETITION NO.520 OF 2025

TANVEER AMJAD TAHIR

versus

SHAHID MEHMOOD and others

JUDGMENT

Date of hearing: **17.12.2025.**

Petitioner by: Agha Muhammad Ali Khan, Advocate.

Respondent No.1 by: Rana Zahid Ali, Advocate.

Mirza Viqas Rauf, J. The petitioner is occupying a shop situated at Khour Road, Fateh Jhang, Attock (hereinafter referred to as “**rented premises**”) owned by respondent No.1 (hereinafter referred to as “**respondent**”) as tenant. To that effect a rent agreement was executed on 03rd September, 2016 for five years whereunder the petitioner was bound to pay Rs.13,000/- per month with 10% annual increase. As per tenancy agreement, the petitioner also paid security in advance. In order to get the **rented premises** vacated, the **respondent** moved an application under Section 19 of the Punjab Rented Premises Act, 2009 (hereinafter referred to as “**Act, 2009**”) before the learned Special Judge (Rent), Fateh Jang (Attock), on multiple grounds, including expiry of tenancy period and default in payment of rent. The petitioner, while resisting the ejectment proceedings, filed an application for leave to contest, controverting the grounds for eviction asserting therein that he paid Rs.3,75,000/- as security to the **respondent** which was adjusted @ Rs.3000/- per month in the rent till September, 2021 and Rs.1,95,000/- are still outstanding towards the **respondent**. Learned Special Judge (Rent), Fateh Jang proceeded to decline the leave to the petitioner and allow the ejectment application by

way of order dated 10th January, 2025. Feeling aggrieved, the petitioner though preferred an appeal under Section 28 of the **Act, 2009** before the learned Additional District Judge, Fateh Jang, Attock but remained unsuccessful as his appeal was dismissed vide judgment dated 12th February, 2025, hence this petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973.

2. Learned counsel for the petitioner contended that in order to contest the ejectment proceedings, the petitioner moved an application for leave to contest, which was though disclosing sufficient grounds for production of evidence but it has been declined in a mechanical manner and eviction order was passed. Learned counsel emphasized that there was a dispute with regard to arrears of rent as well as security interse parties, which cannot be resolved without recording of evidence. Learned counsel emphatically contended that the learned Special Judge (Rent) proceeded in a mechanical manner, while dealing with the application for leave to contest. It is argued that learned Special Judge (Rent) was oblivious of Section 2(b) of the **Act, 2009**, while passing the eviction order. Learned counsel submitted that the appellate court dismissed the appeal without application of judicious mind to the facts of the case and the impugned judgment is not tenable. Placed reliance on Haji MUHAMMAD LATIF versus MUHAMMAD SHARIF and others (2021 SCMR 1430) and ZAHEER AHMAD BABAR versus ADDITIONAL DISTRICT JUDGE LAHORE and 2 others (2015 YLR 1617).

3. Conversely, learned counsel for the **respondent** contended that relationship between the parties is admitted. He added that the application for leave to contest was since not disclosing any ground for recording of evidence so it was rightly dismissed by the learned Special Judge (Rent). Learned counsel submitted that the tenancy between the parties has expired and as such no illegality has been committed by either of the courts. Placed reliance on ASAD ALI KHAN versus SPECIAL JUDGE RENT and others (PLD 2019 Lahore 363), MUHAMMAD LIAQAT ALI versus MAJID ALI and others (2022 MLD 1720) and PAN ISLAMIC INDUSTRIES (PVT.)

LTD versus ADDITIONAL DISTRICT JUDGE and others (2022 C L C 247).

4. Heard. Record perused.

5. The dispute interse landlord and tenant within the Province of the Punjab was previously adjudicated under the Punjab Urban Rent Restriction Ordinance, 1959 (VI of 1959), which was promulgated to restrict the increase of the rent of certain premises within the limits of Urban Areas and the eviction of tenants therefrom in the Province of the Punjab. Nevertheless, in order to regulate the relationship of landlord and tenant, to provide a mechanism for settlement of their dispute in an expeditious and cost-effective manner and connected matters, **Act, 2009** was promulgated on 17th November, 2009, which repealed the Punjab Urban Rent Restriction Ordinance, 1959 (VI of 1959) by virtue of its Section 35. **Act, 2009** introduced a completely different mechanism and procedure for trying the dispute interse landlord and tenant. Chapter IV deals with establishment of Rent Tribunal and procedure. In terms of Section 16 of the **Act, 2009**, Government of the Punjab established Rent Tribunals consisting of Special Judges (Rent), who were appointed by the Government in consultation with the Lahore High Court. The Rent Tribunals, so established, are vested with exclusive jurisdiction over a case under the **Act, 2009**. Section 19 of the **Act, 2009** prescribes procedure for filing of an application in respect of **rented premises** before the Rent Tribunal whereas Section 15 of **Act, 2009** specifies grounds for eviction of a tenant which reads as under: -

15. Grounds for eviction.— A landlord may seek eviction of the tenant if—

- (a) the period of tenancy has expired;
- (b) the tenant has failed to pay or tender the rent within a period of thirty days after the expiry of the period stipulated in section 7;
- (c) the tenant has committed breach of a term or condition of the tenancy agreement;
- (d) the tenant has committed a violation of an obligation under section 13;

- (e) the tenant has used the premises for a purpose which is different from the purpose for which it has been let out; or
- (f) the tenant has sub-let the premises without the prior written consent of the landlord.

6. The **respondent**, being the landlord, moved an application under Section 19 of the **Act, 2009**, seeking eviction of the petitioner, being tenant on the grounds, mentioned hereinabove. Section 22 of the **Act, 2009** ordains that the Rent Tribunal shall not allow a respondent to defend the application unless he obtains leave to contest. For ready reference and convenience, Section 22 of the **Act, 2009** is reproduced below: -

22. Leave to contest.– (1) A Rent Tribunal shall not allow a respondent to defend the application unless he obtains leave to contest.

(2) Subject to this Act, a respondent shall file an application for leave to contest within ten days of his first appearance in the Rent Tribunal.

(3) An application for leave to contest shall be in the form of a written reply stating grounds on which the leave is sought and shall be accompanied by an affidavit of the respondent, copy of all relevant documents in his possession and, if desired, affidavits of not more than two witnesses.

(4) The Rent Tribunal shall not allow leave to contest to a respondent unless the application discloses sufficient grounds for production of oral evidence.

(5) The Rent Tribunal shall decide the application for leave to contest within a period of fifteen days from the date of its filing.

(6) If the leave to contest is refused or the respondent has failed to file application for leave to contest within the stipulated time, the Rent Tribunal shall pass the final order.

(Underlining is supplied for emphasis)

From the bare perusal of above, it is manifestly clear that an application before the Rent Tribunal can only be contested by a respondent while moving an application for leave to contest in terms thereof within ten days of first appearance before the Rent Tribunal. Leave to contest can only be allowed to a respondent if his application discloses sufficient grounds for production of oral evidence. Sub-Section (6) of Section 22 of the **Act, 2009** ordains that if the leave to contest is refused or the respondent has failed to file application for leave to contest within the stipulated time, the Rent

Tribunal shall pass the final order. On the other hand, Section 25 of the **Act, 2009** caters the situation if the leave to contest is allowed to the respondent. Like Sub-Section (6) of Section 22, Sub-Section (5) of Section 25 of the **Act, 2009** also find mention the term “final order”.

7. The term “final order” in the light of perspective of the present case is of great import and it is defined in Section 2(b) of the **Act, 2009** in the following words: -

2. Definitions.– In this Act: --

(a)

(b) “**final order**” means a final order passed by a Rent Tribunal culminating the proceedings including an order in respect of adjustment of pagri, advance rent, security, arrears of rent, compensation or costs but shall not include an order passed in an execution proceedings;

It is thus apparent from the above that the term “final order” is not restricted to the eviction order only but it means an order passed by the Rent Tribunal culminating the proceeding, including an order in respect of adjustment of pagri, advance rent, security, arrears of rent and compensation or costs. After having a brief survey of the above noted provisions of law, it can be observed with certainty that if a tenant moves an application for leave to contest and it discloses sufficient grounds for production of oral evidence, the Rent Tribunal shall allow leave to him. In the above scenario, when application for leave to contest is examined, it clearly evinces that in the light of its averments, it was disclosing sufficient grounds for production of oral evidence.

8. Leaving aside above aspect of the matter, as leave was refused to the petitioner, the Rent Tribunal proceeded to pass the eviction order. It is observed with certainty that the Rent Tribunal clearly proceeded in terms of Sub-Section (6) of Section 22 of the **Act, 2009** and while refusing the leave, accepted the ejectment application and directed the petitioner to handover peaceful possession of the **rented premises** to the **respondent** within 30-days of the passing of the order. It was also observed that in case

the petitioner does not vacate the **rented premises** within stipulated time, the **respondent** could seek the same by filing separate execution petition in this regard. The petitioner was also directed to pay monthly rent till vacation of the demised premises to the **respondent**. It was, however, observed that for redressal of any grievance of any party in lieu of arrears of rent or recovery of amount of security, both the parties are advised to avail proper remedy (recovery suit) in this regard. The observations, so recorded, by the Rent Tribunal itself reflect that the learned Special Judge (Rent) did not conclude the proceedings and the order, so passed, was not final. Even otherwise, in terms of Section 2(b) of the **Act, 2009**, Rent Tribunal was obliged to pass an order with respect to dispute relating to security as well as arrears of rent, as canvassed in the ejectment application and application for leave to contest so as to culminate the proceedings. In view of clear and unequivocal mandate of law, the learned Special Judge (Rent) has abdicated its jurisdiction which is not permissible.

9. So far judgments in the cases of PAN ISLAMIC INDUSTRIES (PVT.) LTD and ASAD ALI KHAN (*supra*), heavily relied upon by learned counsel for the **respondent** are concerned; suffice to observe that the principles laid therein are rested entirely on different facts and circumstances. Same is the position in case of MUHAMMAD LIAQAT ALI (*ibid*) and I feel no cavil to observe that the ratio laid down in the said cases is not attracted at all to the present case.

10. In the case of Haji MUHAMMAD LATIF (*supra*), the Supreme Court of Pakistan outlined the scope of Sub-Section (6) of Section 22 of the **Act, 2009** in the following words: -

6. There is no cavil to the proposition that subsection (2) of section 28 of the Act, 2009 bars filing of appeal against an interim order and there are also no two views that in cases where a statute specifically bars the remedy of appeal against an interim order then such statutory command ordinarily should not be circumvented by allowing parties to invoke writ jurisdiction. However, in the instant case what escaped from the notice of the High Court was as to whether the Rent Controller after declining leave to the tenant to contest the ejectment application could direct the land-lord to adduce evidence and allow the tenant to cross-examine

the land-lord specially when the provision of subsection (6) of section 22 of the Act, 2009 specifically provide that in case where the leave to contest is refused or the respondent has failed to file application for leave to contest within the stipulated time, the rent Tribunal shall pass the final order. This being a mandatory provision with the consequences spelled leaves no option for the Rent Controller but to pass final order. However, it is to be noted that the language employed in Section 22(6) by using the words "final order" instead of "ejectment order", leaves room for the Rent Controller to apply his judicial mind before passing a final order as required under the circumstances of each case may it be ejectment of a tenant or otherwise.

7. It appears that the Rent Controller being oblivious of such command proceeded with the matter as if exercising ordinary civil jurisdiction ordained under the Code of Civil Procedure where even after debarring the defendant to file written statement by declaring him ex parte, the plaintiff can be asked to adduce evidence and the defendant can be provided with opportunity to cross-examine. It is to be noted that the powers conferred on the Rent Controller under subsection (6) of section 22 of the Act, 2009 are more akin to the provisions of Order XXXVII, Rule 2, C.P.C. which provide that on default of defendant in obtaining leave to defend, the plaintiff shall be entitled to a decree. Likewise, in cases where a tenant is declined leave to contest, the Rent Controller is left with no option but to pass a final order.

11. To the proposition at hand, the case of ZAHEER AHMAD BABAR (*ibid*) is quite relevant. Relevant excerpt from the same is reproduced below: -

12. It is also a question whether the amount of 'Pagri' is returnable of the amount paid or with addition of devaluation of currency as the tenant is enhancing the rent according to law as per statute. The Rent Tribunal while deciding the fact of 'Pagri' has to attend the above said question.

13. In these circumstances, the impugned judgments are liable to be set aside and the petitioner is entitled for the grant of leave to contest, which is granted accordingly. The petition is allowed; the judgments of both the courts below dated 8-10-2011 and 24-4-2012 are set aside. Resultantly, the ejectment petition is remanded to learned Rent Tribunal who will decide the same after recording the evidence of the parties.

12. Nutshell of above discussion is that though there are concurrent findings of two courts but the learned Special Judge (Rent) as well as the appellate court were clearly oblivious of Section 2(b) of the **Act, 2009**.

There is no cavil that in ordinary course, this Court exercises restraint to ponder upon the issue concurrently resolved by the courts below but this cannot be treated as an inflexible rule. Being the constitutional Court, it is obligatory for this Court to invoke its jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 to save abuse of process of law and curb patent illegality, if committed by the lower Courts in the process of administration of justice. Writ of *certiorari*, no doubt, is of limited scope but when it is apparent on the record that the courts below, while forming their concurrent view, have committed patent illegality, this Court cannot shut its eyes and let the wrong to perpetuate.

13. For the foregoing reasons, this petition is **allowed** and the leave to contest, filed by the petitioner, is accepted. As a result, the matter is **remanded** to the learned Special Judge (Rent), Fateh Jang, District Attock, who shall frame issues in the light of respective stances of the parties, as embodied in the ejectment application and leave to contest and then decide the same strictly in accordance with law with all swiftness, preferably within **four months** from the date of appearance of the parties. Parties are directed to appear before learned Special Judge (Rent), Fateh Jang, District Attock on **12.01.2026**. Office to transmit copy of this judgment to the court concerned for compliance.

(MIRZA VIQAS RAUF)
JUDGE

Sajjad

APPROVED FOR REPORTING

JUDGE